

ASCII MASTER FLOW – PANEL 1/12: Responsible State executive: legal form and democratic command

ARTICLES 153-167

People -> Legislative Assembly -> confidence -> CM + Council -> real executive

Governor -> constitutional State head -> formal acts and continuity

ARTICLE MAP

153 office | 154 power | 155 appointment | 156 pleasure | 157-159 conditions/oath

161 clemency | 163 advice/discretion | 164 ministry | 165 AG | 166 business | 167 CM duties

CORE RULE

Union appointment creates a federal link, not authority to govern as a Central party agent.

ASCII MASTER FLOW – PANEL 2/12: Appointment, conditions, immunity and pleasure tenure

ENTRY: President appoints by warrant → citizen > 35 → Article 159 oath

CONDITIONS: no legislative seat or other office of profit; emoluments protected.

COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.

ARTICLE 156

five-year outer term + President pleasure + resignation + holdover until successor.

B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal;

no guaranteed five-year lease and no routine duty to disclose reasons.

ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.

ASCII MASTER FLOW – PANEL 3/12: Complete power classification and source control

~~EXECUTIVE: appoint CM; ministers on CM advice; AG, SFC, SPSC and district judge roles.~~

LEGISLATIVE: 168, 171, 174-176, 200 and 213.

FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.

CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.

SPECIAL: Article 356 report; constitutionally specified responsibilities.

STATUTORY: university Chancellor only where State law provides.

TRAPS: Governor does not appoint HC judges or nominate Assembly members.

ASCII MASTER FLOW – PANEL 4/12: Aid and advice, discretion and special responsibilities

DEFAULT -> Shamsher Singh (1974): CM-led Council advice controls.

EXCEPTION -> express text or necessary implication; discretion remains purpose-bound.

BOUNDED FIELDS

hung-House appointment | objective floor-test doubt | Article 200 reservation

Article 356 report | UT additional charge | constitutionally specified responsibilities.

SPECIAL TEXTS

Article 371A(1)(b): Nagaland law and order | 371H(a): Arunachal law and order

individual judgment after consulting Council; Sixth Schedule assigns specified functions.

LIMIT: exceptional State texts do not create general discretion for every Governor.

ASCII MASTER FLOW – PANEL 5/12: Case-law ladder: from advice to objective material

~~Shanmugam Singh (1974) -> constitutional head; advice is norm~~

S.R. Bommai (1994) -> Article 356 review; House floor ordinarily tests majority

Rameshwar Prasad (2006) -> speculative horse-trading cannot justify dissolution

B.P. Singhal (2010) -> pleasure survives; arbitrary removal does not

Nabam Rebia (2016) -> Articles 174-175 normally advice-bound

Subhash Desai (2023) -> objective material; no intra-party arbitration by floor test

CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

ASCII MASTER FLOW – PANEL 6/12: Government formation, floor test, dismissal and dissolution

CLAR MAJORITY -> appoint recognised leader -> ordinary responsible government

HUNG HOUSE -> invite credible confidence claimant -> early floor test -> no secret count.

LATER DOUBT -> objective material -> prompt floor test in Assembly.

AFTER TEST

confidence retained -> ministry continues

confidence lost -> resignation/dismissal -> test alternative -> dissolution only if needed.

CARETAKER -> continuity with restraint, not a fresh policy mandate.

Subhash Desai (2023): factional dissent alone insufficient.

Rameshwar Prasad (2006): anticipated misconduct cannot replace House process.

ASCII MASTER FLOW – PANEL 7/12: Article 356 report and the federal firewall

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

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v

PRESIDENTIAL PROCLAMATION -> parliamentary approval -> temporary consequences

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JUDICIAL REVIEW UNDER S.R. BOMMAI (1994)

relevance | mala fides | constitutional purpose | possible restoration

FLOOR-TEST PRIORITY

A majority dispute ordinarily belongs in the House, not in Raj Bhavan's assessment.

TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ASCII MASTER FLOW – PANEL 8/12: Articles 200-201 and the 2025 assent control

ARTICLE 200

assent | withhold | return non-Money Bill once | reserve for President
mandatory reservation: Bill endangers High Court constitutional powers.
After repassage Governor cannot return again; exact remaining route is text-specific.

ARTICLE 201

President: assent | withhold | direct return of non-Money Bill through Governor
repassage does not compel presidential assent.

2025 CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent
In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines
or automatic deemed assent; prolonged unexplained inaction remains reviewable.

ASCII MASTER FLOW – PANEL 9/12: Ordinance power and clemency comparison

ARTICLE 71

required House(s) not in session + immediate necessity -> ordinance with Act-like force

-> must be laid -> expires six weeks after reassembly unless approved earlier.

D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.

Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

ARTICLE 161 V ARTICLE 72

Governor: State-field offences; no court-martial limb; cannot pardon death sentence

but may suspend, remit or commute it. President has wider text.

Both ordinarily act on advice and remain reviewable for recognised defects.

ASCII MASTER FLOW – PANEL 10/12: Chief Minister, Article 167 and State Council

GOVERNOR APPOINTS CM -> CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers -> allocates portfolios -> coordinates policy -> advises Governor.

ARTICLE 167 -> communicate Council decisions, furnish information, collectivise decisions.

COUNCIL UNDER ARTICLES 163-164

appoint ministers on CM advice | collective responsibility to Assembly

individual pleasure is mediated by CM advice and confidence | non-member: maximum six months.

91ST AMENDMENT

ministers $\leq 15\%$ of Assembly, minimum 12; defector bar under Article 164(1B).

ASCII MASTER FLOW – PANEL 11/12: Tribal minister, Advocate General, business and comparison

TRIBAL WELFARE MINISTER

required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.

ARTICLE 165 -> Advocate General: HC-judge qualification; advises State government.

ARTICLE 166 -> authentication and business-allocation rules; not personal Governor policy.

PRESIDENT v GOVERNOR

both constitutional heads | Article 74 differs textually from 163

Article 72 wider than 161 | Governor reserves State Bills under 200

Governor has State-specific special responsibilities; neither difference creates general discretion.

CHANCELLOR: statute-specific, not inherent constitutional office.

ASCII MASTER FLOW – PANEL 12/12: Federal neutrality, reforms, PYQs and answer synthesis

MAIN LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE

constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation

NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests

All are proposals unless enacted.

PRELIMS: elected? NO | guaranteed five years? NO | general discretion? NO

Money Bill return? NO | Chancellor constitutional? NO | Article 361 = State immunity? NO.

MAINS SPINE

text -> advice default -> exceptional trigger -> case + year -> federal risk

-> matched reform -> neutral constitutional-head conclusion.